

Are Philippine Courts Ready for a Jury System?

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I. Introduction

In the advent of movie and TV series streaming platforms, Filipinos got more acquainted with cultures from different parts of the world by watching TV series. As such, one of the most popular genres when it comes to TV series are legal dramas. Shows such as *How to Get Away with Murder*, *Suits*, *Better Call it Saul*, and many more are popular among Filipino viewers.

Filipino viewers look forward to litigation scenes; this is where most of the drama happens. As they continue to binge on these shows, they become familiar with court processes and structures in the United States of America (as most of these shows have an American context). Hence, many have pointed out one glaring difference between Philippine Courts and American Courts: the presence of a jury system.

But what exactly is a jury system? Britannica defines a jury system, or simply jury, as a legal system in which a group of laypersons take part in deciding a case brought to a competent court¹. Historically, its origin is disputed by historians; it either originated in England or was brought there by the Norman invaders in 1066². The logic behind the early use of a jury system is that, the neighbors who witnessed a crime or an event will be the one who will render judgment³. Their judgment is based on what they knew personally⁴.

When England came to the New World, they used a jury system in their colonies. Hence, after the USA declared independence, they still adopted the jury system. Thomas Jefferson, one of the founding fathers of the USA, emphasized the importance of a jury system. He said that the English colonizers deprived them of the benefits of a jury system, as the English decided when to use a jury system at their convenience⁵.

¹ Hans Zeisel, "Jury," Encyclopædia Britannica (Encyclopædia Britannica, inc.), accessed June 3, 2021, <https://www.britannica.com/topic/jury>.

² *Id.*

³ *Id.*

⁴ *Id.*

⁵ "Learn about the History of the Jury System," Mass.gov, accessed June 3, 2021, <https://www.mass.gov/info-details/learn-about-the-history-of-the-jury-system>.

Today, an American jury system is broken down into two kinds, the trial jury and the grand jury⁶. A trial jury is composed of six to twelve jurors⁷. The trials are generally public, however, the deliberations are private⁸. In contrast, a grand jury is composed of sixteen to twenty-three jurors⁹. The grand jury proceedings are private in nature¹⁰. A trial jury is both used in criminal and civil proceedings while a grand jury is only used in federal criminal proceedings¹¹.

II. Jury System: Pros and Cons

In a jury system, the jurors determine the guilt or liability of a party by the vote of the jurors. As we take note that jurors are laypersons, we should also note that most countries who use a jury system practice a common law system. As these courts give equal footing to jurisprudence as statutes, it is important that jurors must be given information by the court regarding such jurisprudence and statutes. They can pass notes, ask the judge or any member of the court about certain statutes, etc.

As there are multiple jurors, there may be less cases of bribery. More jurors means more people to bribe. This will be very costly for anyone who attempts to do such a thing.

When jurors vote, they do it in deliberations. They will discuss the facts of the case, apply the relevant provisions of the law, and vote for or against a party individually. When this is the case, the judgment does not solely lie on one person.

One of the main criticisms of the jury system is that jurors may be influenced by the opinion of the general public; after all, they are part of the general public. They may become emotional, sympathetic to a party, or angry with a party.

Jury system is also expensive. For one, if all courts have six to twelve more personnel, the government would have to pay six to twelve more persons. If we multiply that by the number of courts, the government will pay tons of money.

III. Is the jury system suitable in the Philippines?

Whether we like it or not, the Philippines is a poor country compared to other countries. As this is the case, the Philippines may not be ready for a jury system.

⁶ "Types of Juries," United States Courts, accessed June 3, 2021, <https://www.uscourts.gov/services-forms/jury-service/types-juries>.

⁷ *Id.*

⁸ *Id.*

⁹ *Id.*

¹⁰ *Id.*

¹¹ *Id.*

To accurately judge a case through a jury system, the general populace must be well educated. This is not the case here in the Philippines. As jurors come from all walks of life, we might be seeing cases decided based on pure opinion and personal biases.

The courtroom facilities in the Philippines are also limited. Based on multiple experiences by different personalities who went to a court, they described the facilities as inadequate. In an anecdote delivered by Dr. Raquel Fortun to the students of University of the Philippines Manila, she described a court in Central Luzon as a miserable court. She was subpoenaed to appear in the said court. When she arrived there, the seat given to her was broken. It only had three legs.

This illustration shows that Philippine courts may not be ready for a jury system. If we, as a country, truly want a jury system, we must first give priority to educate the general public properly. The next generation of students must have the proper capacity to decide cases based on logic and reasoning, regardless of what sector they come from. Next, we should also protect the independence of the judiciary. If we cannot protect our courts considering we have this kind of system, how can we protect the integrity of the jurors? All of these factors must be considered before we make a switch to a jury system. ■

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